



POLICE DEPARTMENT

June 25, 2010

MEMORANDUM FOR: Police Commissioner

Re: Detective Robert Francis
Tax Registry 925311
71 Precinct
Disciplinary Case No. 83910/08

The above-named member of the Department appeared before me on March 24, 2010, charged with the following:

1. Said Detective Robert Francis, while assigned to Internal Affairs Bureau Command Center, on or about and between December 2, 2006 and October 30, 2007, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, to wit: said Detective failed to submit UF-28's for lost time on sixty-two (62) occasions.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
P.G. 203-05, Page 1, Paragraphs 2 & 4 – PERFORMANCE ON DUTY,
GENERAL REGULATIONS

2. Said Detective Robert Francis, assigned as indicated above on or about and between December 26, 2006 and April 11, 2007, while on duty, failed to note the completion of his tour in the Command Log on two (2) occasions, as required.

P.G. 203-05, Page 1, Paragraph 4 – PERFORMANCE ON DUTY,
GENERAL REGULATIONS

The Department was represented by Rita Bieniewicz, Esq., Department Advocate's Office, and the Respondent was represented by Philip Karasyk, Esq.

The Respondent, through his counsel, entered a plea of Guilty to the subject charges. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

The Respondent stated that he was born in Jamaica in the West Indies and came to the United States when he was 17. At that time, he lived with his father. In 1996, he joined the Army and later received an honorable discharge. After that, he worked as a corrections officer in the Federal Bureau of Prisons for slightly over a year. He said that he left that job to be a police officer in the New York City Police Department on March 1, 2000 because that was what he had always wanted to do.

The Respondent stated that he is married and has two daughters from the marriage and a 13-year-old stepson, who has been diagnosed with sickle cell disease. As a result of that diagnosis, the Respondent said that there has been "a lot of stress, a lot of burden, a lot of emotions" in his life. He stated that his stepson is frequently sick and has been hospitalized, which "brings in stress, it brings emotions, it brings change of basic operation." The Respondent testified that there have been times when he has had to leave work to go to the hospital where his stepson is admitted to allow friends or relatives, who were watching his stepson temporarily, to go home.

The Respondent said that he joined the Department on March 1, 2000. After graduating from the Police Academy, he was assigned to the 71 Precinct, and shortly thereafter was assigned to the 60 Precinct Coney Island detail. After leaving the summer detail, he returned to the 71 Precinct in 2001. He was assigned to the 60 Precinct summer detail again, then returned to the 71 Precinct in 2001. When the events of September 11, 2001 occurred, he was “mostly in Manhattan doing cleanup or assisting with traffic or anything that [he was] assigned to.”

In 2002, as per the direction of the precinct commanding officer, the Respondent returned to the 60 Precinct. At that precinct, the Respondent said that his primary assignment was as the quality of life (QOL) enforcement officer. He stated that the commanding officer felt that the Respondent was best suited for the position because of “[the Respondent’s] interaction with the public and the feedback that the commander gets from [his] reactions per the people in the community.” At the time, quality of life was a great issue within the confines of the 60 Precinct. After the 60 Precinct Commanding Officer was promoted and transferred to Patrol Borough Brooklyn South, the Respondent returned to the 71 Precinct.

The Respondent explained that the neighborhood of the 60 Precinct extends all the way down to Seagate and covers part of Neptune Avenue, which extends into the 61 Precinct. It also extends to the Howard Beach side, where “it’s like a melting pot pretty much everyone and anyone is pretty much there and it gets at times especially during the summer time and sometimes in the winter time it gets very complicated as far as quality of life issues, which is one of the biggest problem in the precinct.” The Respondent agreed that the 60 Precinct is the Coney Island section. He said that since working with

the public was “one of [his] greatest thrills” and the feedback that the commanding officer received as a result of that interaction with the public, the 60 Precinct Commanding Officer requested that the Respondent work there and offered him the position as QOL officer.

The Respondent stated that when the 60 Precinct Commanding Officer was transferred, the 71 Precinct Commanding Officer requested that he return there, where he was then offered the Auxiliary Coordinator position. He explained that he was a former auxiliary officer and his experiences as one made him want to become a police officer.

While he was the Auxiliary Coordinator, the Respondent was offered a position in the Internal Affairs Bureau (IAB) in May 2005. He was assigned to the Command Center, which is a complaint intake center at 315 Hudson Street. There, his primary assignment was to receive intake complaints, which are complaints received through a telephone call or “walk in” to the Command Center. He stated that his time was tracked through a code he used to sign onto his computer and a log where he had to sign in.

In explaining the Command Center, the Respondent stated, “it never stops, the phones never stop ringing ever, it’s just continuously ringing and the complaint comes in one behind the other.” He indicated that since the volume of complaints was “enormous” and the Command Center was usually short staffed, the investigators “don’t get a chance to really take any meal, which is one of the ways well, a way that they allow us to allow the Command Center to flow with the enormous complaints that come in.” He said that the Command Center only had a table for maybe six or seven investigators, not including the sergeant’s desk, but the sergeant did not take complaints most of the time.

The Respondent stated that the number of calls that he handled each day varied. Each investigator could handle 15 to 20 complaints per day “depending on the enormity of the complaints that come in.” He stated that when a serious complaint was received, it “interrupt[ed] the flow” greatly because the investigator who received the complaint, which they term a “call out,” had to carry out an in-depth investigation. That entailed compiling an investigative folder, which was more time consuming for that particular investigator. The remaining investigators were then “pretty much bombarded” by the calls that continued to come in “because you can’t leave that particular complaint to take additional calls so they put more burden on the other investigators that are there to take those calls.”

The Respondent stated that he does not ever go to lunch during the workday nor does he take his 15-minute break. He agreed that he is basically at his desk during the entire workday. He stated that at the end of his tour:

To compensate us for the fact that we don’t get a chance to take a meal break we don’t get a chance to take a personal the supervisors at the Command Center would allow us when we are relieved by incoming investigator to sign out and take our break at the end, sign out mean sign out just don’t leave the building.

He explained that by signing out, he signed off the computer, took all of his paperwork, and left the desk because the incoming investigator replaced him at the desk and signed in.

The Respondent stated that, during his first year or two at the Command Center, he received ratings of 4.0 on his annual performance evaluations, which was “very excellent.” There was a point in time when the rating went from 4.0 to 3.5. The Respondent indicated that he is no longer assigned to IAB. When the charges in this

matter were pending, he was transferred back to the 71 Precinct, where he is now in uniform in a patrol capacity. He acknowledged that he is required to submit a UF-28¹ when he ends his tour early. The Respondent said that he has been assigned to the 71 Precinct from 2008 to the present. Since his assignment there, the Respondent has received ratings of 4.0 on his annual performance evaluations.

On cross-examination, the Respondent stated that he is currently assigned as the Conditions Officer in the Traffic Safety Unit of the 71 Precinct. His primary responsibility is to address “hazard parking” within the confines of the precinct. In this capacity, he responds to the major roads that are always obstructed during the rush hour period to ensure that there is no parking in the bus stops, double parking, or similar issues. He stated that he works from 3:00 p.m. to 11:35 p.m and goes to meal during those hours at various times, which he determines at his discretion. He agreed that his current position at the 71 Precinct is an active, busy one.

The Respondent said that when he was assigned to the Command Center, he did not really ever ask a supervisor if he could take his meal period at the end of his tour. He answered in the negative when asked if he was aware that there is a Department form that can be submitted to allow members of the Department to take their meal period at the end of their tour, thus shortening their tour by one hour.

When asked to explain how he took his break at the end of his tour at IAB, the Respondent stated that due to the “enormity” of the incoming complaints and the fact that they were “mostly always understaffed,” the supervisors allowed the investigators to “work through [their] work time that they are there and take the meal or the break at the end towards the end before [they] go home.” He said that an investigator would come to

¹ Leave of Absence Report

provide relief and “take over” the desk. The investigators were allowed to sign out, but could not leave the building “at all” despite signing out.

The Respondent explained that the break period at the end of tour was not a specified amount of time. He stated, “Sometimes you get signed out and you only have like two minutes sometimes you will have a minutes sometimes you will have 10 minutes sometimes you will have 20 minutes it varies based on the different days that the employee comes in.” He indicated that by signing out, he meant that he signed out of the computer since the incoming investigator had to sign in, and he signed out of the Command Log. He stated that he had to sign out and put everything away “because if you don’t sign out it messes up everything for everybody. When you sign out you put your all your paperwork and stuff away in your locker then you go to the lounge area, which is the back area inside the command area and stay there until it is time to leave you just don’t leave the building.”

When asked by the Court if he failed to remain in the building and left, the Respondent stated, “No, sir.” He indicated that the Command Center area has one entrance and exit, and no back door. Upon signing out, the investigator is instructed to take his or her break, sign out, go to the lounge area and “relax” there, but not to leave because there is a camera there. Despite signing out, an investigator does not leave “until it was time for you to go through the door.” When asked again by the Court if he went ahead and left anyway, the Respondent stated, “No, sir, you don’t leave.”

The Respondent denied leaving before his tour of duty was over on the 62 occasions to which he pled Guilty. When asked by the Assistant Department Advocate if he was in the building taking his break when he finished his tour of duty or either forgot

or did not submit a UF-28, he responded, "You stay inside the building. The only time that I would leave the building which is if there is like an emergency and you are permitted to leave then you leave the building at that point in time." At all other times, he would stay in the building even if he had signed out.

The Respondent agreed with the Court that he had signed out early on 62 occasions in the Command Log, which meant that he signed off on his computer so that an incoming investigator could use the computer to receive complaints. He acknowledged that he worked a tour of 1430 by 2300 hours, and on those 62 occasions he signed out some time short of 2300 hours, such as at "2200 and something." He stated that he then stayed in the building. He agreed with the Court that he was pleading Guilty for failing to account for the time up to 2300 hours since he signed out short of 2300 on those 62 occasions. He acknowledged, as part of his Guilty plea, that he should have filled out a UF-28 to account for the minutes that "would have brought [him] to 2300 hours" and that it was wrong not to fill out the UF-28 on those 62 occasions. The UF-28 would have accounted for that time when he left a little early to compensate his lunch hour. He agreed that, in essence, by failing to submit a UF-28, he was taking time when he should not have. He indicated that, in the future, if he had to leave early for whatever reason, he would fill out a UF-28 to account for the time.

When asked by the Court if after he signed out he was no longer working, the Respondent stated, "No, sir." He indicated that he stayed in the building until the end of his tour. The Respondent was asked by the Court, "You had already signed out you were no longer participating in any jobs for the New York City Police Department for those 62 times that you signed out?" to which he replied, "No, sir."

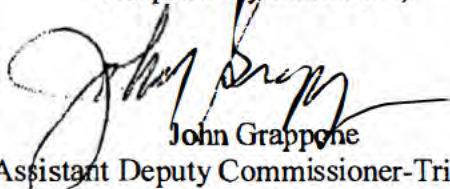
PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined, see Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on March 1, 2000. Information from his personnel folder that was considered in making this penalty recommended is contained in the attached confidential memorandum.

The Respondent has pleaded guilty to the specifications in this case. This Court, therefore, recommends as a penalty the Department's recommendation of forfeiture 20 vacation days and that an adjustment of 17 hours, the time for which he failed to submit Leave of Absence Reports, be made to the Respondent's leave balance.

Respectfully Submitted,


John Grappone
Assistant Deputy Commissioner-Trials


APPROVED
NOV 08 2010
RAYMOND W. KELLY
POLICE COMMISSIONER

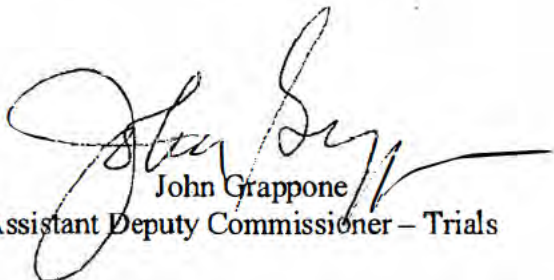
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
DETECTIVE ROBERT FRANCIS
TAX REGISTRY NO. 925311
DISCIPLINARY CASE NO. 83910/08

In 2008 and 2009, the Respondent received an overall rating of 4.0 “Highly Competent” on his annual performance evaluation. He was rated 3.5 “Highly Competent/Competent” in 2006. He has been awarded two medals for Excellent Police Duty. [REDACTED]

[REDACTED]. The Respondent has no prior formal disciplinary record. He has been on Level-II Discipline Monitoring since March 2008.

For your consideration.


John Grappone
Assistant Deputy Commissioner – Trials